

"Civility allows for zealous representation, reduces clients' costs, better advances clients' interests, reduces stress, increases professional satisfaction, and promotes effective conflict resolution. These guidelines foster the civility and professionalism that are hallmarks of the best traditions of the legal profession."

OCBA Civility Guidelines

"The American legal profession exists to help people resolve disputes cheaply, swiftly, fairly, and justly. Incivility between counsel is sand in the gears."
(*Karton v. Ari Design & Construction, Inc.* (2021) 61 Cal.App.5th 734, 747.)

TENTATIVE RULINGS
Judge Kimberly Knill, Dept. C31

- **The court encourages remote appearances to save time, reduce costs, and increase public safety.** Go to www.occourts.org/media-relations/civil.html and click the blue box, "Click here to appear/check-in for Civil Small Claims/Limited/Unlimited/Complex remote proceedings." Navigate to Department C31 Judge Kimberly Knill.
- All hearings are open to the public.
- If you desire a transcript of the proceedings, you **must** provide your court reporter (unless you have a fee waiver and request a court reporter in advance).
- Call the other side. If **everyone** submits to the tentative ruling, call the clerk at **657-622-5231**. Otherwise, the court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

No filming, broadcasting, photography, or electronic recording of the video session is permitted pursuant to California Rules of Court, rule 1.150, and Orange County Superior Court rule 180.

HEARING DATE: Friday, 5/22/2026 10:00 AM

#	Case Name	Tentative
1	Callahan vs. Anderson 30-2024-01440872-CU-FR-CJC	Motion to be Relieved as Counsel of Record The motion of attorney Steven Vahidi to withdraw as attorney of record for Plaintiff is DENIED. Counsel failed to file the required proposed order. (Cal. Rules of Court, rule 3.1362, subd. (e).) Clerk to give notice.
2	John vs. Motel 6 30-2024-01427798-CU-PO-CJC	Motion to be Relieved as Counsel of Record The motion of attorney Mary Guirguis to withdraw as attorney of record for Plaintiff is DENIED. The proof of service indicates the motion was served via mail. However, the declaration attests the motion was personally served on Plaintiff. Further, it does not confirm

		counsel confirmed the last known address of Plaintiff for service by mail. Therefore, the proof of service is deficient. Clerk to give notice.
3	Bella Terra Associates, LLC vs. Sender One Bella Terra LLC 30-2024-01423200-CU-BT-CJC	Motion for Leave to File First Amended Complaint Plaintiff Bella Terra Associates, LLC's Motion for Leave to Amend is GRANTED. Defendants have not shown the change in the claim for damages will result in any prejudice. Plaintiff is ORDERED to file the proposed amended complaint attached to its Motion as Exhibit B within 5 days. Plaintiff to give notice.
4	Thomas vs. City of Rancho Santa Margarita 30-2024-01396694-CU-PO-CJC	Defendant Rancho Santa Margarita Landscape and Recreation Corporation's Motion for Leave to File a First Amended Answer Defendant Rancho Santa Margarita Landscape and Recreation Corporation's Motion for Leave to File a First Amended Answer is GRANTED. Defendant's request for judicial notice of the secured assessment role for the subject greenbelt and a certified copy of the recorded deed for the subject greenbelt is GRANTED. Plaintiff's objection to Defendant's request for judicial notice is OVERRULED. Defendant seeks leave to amend its answer to add the additional defense of immunity based on recreational entry onto land pursuant to Civil Code section 846 because it only recently learned it owned the greenbelt at issue. (Sorkin Decl., ¶ 8, Ex. D.) The parties initially believed the greenbelt, which is maintained by Defendant, was owned by the City. On 3/24/2026, during Plaintiff's deposition, defendant's counsel questioned Plaintiff concerning the exceptions to Civil Code section 846 and confirmed she did not have express permission to enter the greenbelt, she did not pay consideration to enter the greenbelt, and she had no knowledge that the indentation on the greenbelt was an intentionally placed trap. (See Sorkin Decl., ¶ 3; see also Anderson Decl., ¶ 10.)